LATIFA AWADH SALEH & 3OTHERS v. MARIAM MBARAK AHMED

COURT OF APPEAL OF TANZANIA

AT DODOMA

GALEBA, J.A., MASOUD, J.A., AND FELESHI, J.A.)

CIVIL APPEAL NO. 607 OF 2025

(Appeal from the Judgment of the High Court of Tanzania at Iringa, Mwipopo, J.) dated the 27th day of December, 2024 in Probate and Administration Cause No. 02 of 2023)

Appeal struck out for incomplete record (missing letters of administration) and suing respondent personally instead of as administratrix

The dispute arose from administration of the estate of the deceased, Awardh Saleh Bader, who died testate in 2020. In his Will, the deceased (a Muslim) distributed most of his estate to his widow (1st Respondent), daughters (including Appellants), and charitable institutions, excluding his sons on the ground that they had already received lifetime gifts. The executor renounced executorship, leading the 1st Respondent to petition for letters of administration with Will annexed. The Appellants objected to her appointment citing age and bias, while the 2nd Respondent challenged the validity of the Will under Islamic law. The High Court declared the Will void for violating Islamic succession principles and appointed the 1st Respondent as Administratrix. The Appellants appealed against invalidity of the Will and appointment of the 1st Respondent. The Respondents raised Preliminary Objections challenging the competence of the appeal.

Held:

i. Failure to include the order appealed from renders and appeal incompetent. Failure to include letters of administration rendered incomplete record of appeal and thus appeal incompetent.
ii. Suing the 1st respondent in her personal capacity instead of her legal capacity was fatal and made the appeal incompetent.

Cases Laws

i. Dr. Fortunatus Lwanyantika Maisha v. Dr. William Shija [1997]TZCA 51
ii. Mussa Shaibu Msangi v. Sumry High Class Limited & Another [2025] TZCA 692

Appeal Struck Out

Statutory Provisions referred to:

i. Probate and Administration of Estates Act, Cap. 352 (Section 52, 55(1) 71, 72(1),
ii. Tanzania Court of Appeal Rules, 2009 (Rule 96)

Mr. Rutebuka Samson Anthony and Aloys Rugazia for Appellants

Ms. Flavian John Walter and Josia Shayo for Respondents